

CONTROLLED UNCLASSIFIED INFORMATION

Justification and Approval (J&A) for Other Than Full and Open Competition

Was a J&A approved for the preceding acquisition where that acquisition required a J&A? ☒ Yes ☐ No

!! Attach the preceding J&A in the staff package for this J&A. The preceding J&A will be used as a reference document.

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined at [DAFFARS 5302.101](#)? ☐ Yes ☒ No

Dollar Value of this Acquisition: ☐ ≤ \$750K ☒ > \$750K and ≤ \$15M ☐ > \$15M and ≤ \$100M ☐ > \$100M

Contracting Activity: United States Air Force
AFSC/PZABA
3001 Staff Drive
Tinker AFB, OK 73145
United States Air Force
FD2030-23-02217

Purchase Request (if available) / Local ID Number: FD2030-23-02217

Program / Project (and PE, if applicable): B-1 Alarm Control

Program Type (PEO, Enterprise, of Operational): Enterprise

Authority:

6.302-1 – 10 USC 3204(a)(1), Only One Responsible Source - No Other Supplies or Services Will Satisfy Agency Requirements

Estimated Contract Cost (including options): \$ [REDACTED]

J&A Type: ☒ Class ☐ Individual

!! Provide estimated cost of all contracts.

COORDINATION ([DAFFARS 5306.304\(a\)](#))

Date 28 Nov 2023	Project Lead / Program Mgr / Requiring Activity [REDACTED] 422 SCMS/GUME; 582-6898	Signature [REDACTED]
Date 05 Dec 2023	Contracting Officer [REDACTED] AFSC/PZABA, 334-300-3396	Signature [REDACTED]
Date 05 Dec 2023	Local Legal Reviewer [REDACTED] 72 ABW/JAQ; 405 739-2692	Signature [REDACTED]

APPROVAL ([DAFFARS 5306.304\(a\)](#))

Date 19 Dec 2023	Competition Advocate Amy Hawkins AFSC/PZCA/405-736-2427	Signature HAWKINS AMY LYNN 1 245099670 Digitally signed by HAWKINS AMY LYNN 245099670 Date: 2023.12.19 11:09:24 -06'00'
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Justification and Approval (J&A) for Other Than Full and Open Competition

I. Agency and Contracting Activity.

United States Air Force
 AFSC/PZA
 3001 Staff Drive
 Tinker AFB, OK 73145
 Purchase Request (PR): FD2030-23-02217

II. Nature and/or description of the action being approved.

A class J&A is appropriate based on the expectation that there will be multiple task/delivery orders generated from the basic contract. Because the task/delivery orders will be authorized by the basic contract, the orders will be for in-scope work. The goal is to obtain a new follow-on, firm-fixed price, requirements-type contract. The contemplated contract is for repair services of B-1 Alarm Control from Kidde Tech Inc. (Collins), Commercial and Government Entity (CAGE) code 61423. In accordance with (IAW) FAR 16, a requirements type with a one-year basic contract and four one-year options is considered to be appropriate for this acquisition. This repair service is not commercial and is not a bridge action. The estimated total value of this award is \$ [REDACTED] with an estimated award date of Feb 25.

Current Contract: FA8117-22-D-0007
 Date of Award: 11 Feb 22
 Completion Date: 10 Feb 25
 Basic Award: Sole Source
 Value: \$ [REDACTED]

III. Description of supplies/services required to meet agency needs.

Under the contemplated contract, Kiddie Tech Inc. will provide the following services for repair of the B-1 Alarm Control.

Contract Summary

Year	Estimated Period of Performance	Estimated Dollars
Basic	11 Feb 25 - 10 Feb 26	\$ [REDACTED]
Option 1	11 Feb 26 - 10 Feb 27	\$ [REDACTED]
Option 2	11 Feb 27 - 10 Feb 28	\$ [REDACTED]
Option 3	11 Feb 28 - 10 Feb 29	\$ [REDACTED]
Option 4	11 Feb 29 - 10 Feb 30	\$ [REDACTED]
Over & Above (O&A)	11 Feb 25 - 10 Feb 30	\$ [REDACTED]
O&A (Expedite Fee)	11 Feb 25 - 10 Feb 30	\$ [REDACTED]
Total Contract		\$ [REDACTED]

PR Line Item 0001: MAJOR REPAIR

Input National Stock Number (NSN): 6340-01-339-9283 / Input Part Number (PN): DCU-299/A

Justification and Approval (J&A) for Other Than Full and Open Competition

Output NSN: 6340-01-339-9283 / **Output PN:** DCU-299/A

Item Unique Identification (IUID): 1

Noun: Alarm Control

Application: B-1

Item Description and Function: Continuously monitors resistance of the engine auxillary power unit sensing element loop for fire or short.

Year	BEQ	Unit Price	Estimated Dollars	Period of Performance
Basic	15	\$ [REDACTED]	\$ [REDACTED]	11 Feb 25 - 10 Feb 26
Option 1	15	\$ [REDACTED]	\$ [REDACTED]	11 Feb 26 - 10 Feb 27
Option 2	15	\$ [REDACTED]	\$ [REDACTED]	11 Feb 27 - 10 Feb 28
Option 3	15	\$ [REDACTED]	\$ [REDACTED]	11 Feb 28 - 10 Feb 29
Option 4	15	\$ [REDACTED]	\$ [REDACTED]	11 Feb 29 - 10 Feb 30

Type of Appropriation: 97X4930

Total Estimated Dollars for PR Line Item 0001: \$ [REDACTED]

PR Line Item 0002: MINOR REPAIR

Input NSN: 6340-01-339-9283 / **Input PN:** DCU-299/A

Output NSN: 6340-01-339-9283 / **Output PN:** DCU-299/A

IUID: 1

Noun: Alarm Control

Application: B-1

Item Description and Function: Continuously monitors resistance of the engine auxillary power unit sensing element loop for fire or short.

Year	BEQ	Unit Price	Estimated Dollars	Period of Performance
Basic	1	\$ [REDACTED]	\$ [REDACTED]	11 Feb 25 - 10 Feb 26
Option 1	1	\$ [REDACTED]	\$ [REDACTED]	11 Feb 26 - 10 Feb 27
Option 2	1	\$ [REDACTED]	\$ [REDACTED]	11 Feb 27 - 10 Feb 28
Option 3	1	\$ [REDACTED]	\$ [REDACTED]	11 Feb 28 - 10 Feb 29
Option 4	1	\$ [REDACTED]	\$ [REDACTED]	11 Feb 29 - 10 Feb 30

Type of Appropriation: 97X4930

Total Estimated Dollars for PR Line Item 0002: \$ [REDACTED]

PR Line Item 0003: No Fault Found (NFF)

Input NSN: 6340-01-339-9283 / **Input PN:** DCU-299/A

Output NSN: 6340-01-339-9283 / **Output PN:** DCU-299/A

IUID: 1

Noun: Alarm Control

Application: B-1

Item Description and Function: Continuously monitors resistance of the engine auxillary power unit sensing element loop for fire or short.

Type of Appropriation: 97X4930

Total Estimated Dollars for PR Line Item 0003: NFF costs are less than the cost of repair. They are applied through de-obligated funds from the cost of repair, thereby reducing the dollar value of the contract. Cost estimation is unnecessary.

Justification and Approval (J&A) for Other Than Full and Open Competition

PR Line Item 0004: OVER AND ABOVE (O&A)

Is negotiated on an as needed basis. Over and above is estimated at 10% of total estimated repair dollars based on historical requirement.

Type of appropriation: 97X4930

Total Estimated Dollars for PR Line Item 0004: \$ [REDACTED]

PR Line Item 0005: O&A (SURGE Expedite Fee)

Is negotiated on an as needed basis for SURGE. The O & A Expedite Fee is estimated at 10% of total estimated repair dollars.

Type of appropriation: 97X4930

Total Estimated Dollars for PR Line Item 0005: \$ [REDACTED]

PR Line Item 0006: DATA

Not separately Priced

Data IAW DD 1423 Contractor Data Requirements List (CDRL)

Commercial Asset Visibility Air Force (CAV-AF) Reporting

PR Line Items 0001 and 0002 prices were derived from previous contract plus 5% inflation factor.

The Contract Line Item (CLIN) structure will not include separately priced CLINs for Intellectual Property (IP) or IP Rights. The preceding IP rights strategy is consistent with the Acquisition Strategy as approved by the appropriate authority.

This J&A covers all contract actions including options, task orders and delivery orders for all CLINs detailed in the CLIN table above.

Due to circumstances described below in Sections IV and V, there are no immediate actions that could be taken to develop competition. Therefore, it is considered appropriate to seek approval for more than one year of requirements. If other qualified or approved sources become known at any time during the life of this contract, full and open competition will be considered and utilized to the maximum extent practicable.

IV. Demonstration that the contractor's unique qualifications or the nature of the acquisition requires use of the authority cited above.

The B-1 Alarm Control for B-1 continuously monitors resistance of the engine auxillary power unit sensing element loop for fire or short. The B-1 Alarm Control specifically supports the B-1 aircraft and therefore, requires a qualified remanufacturing source to ensure uninterrupted continuity. Kidde Tech Inc. (Collins), Commercial and Government Entity (CAGE) code 61423 has been providing this service on previous sole source contract FA8117-22-D-0007 and is the only contractor with the capability to perform the required service at this time. Performance of this service requires prequalification IAW Air Force Materiel Command Instructions (AFMCI) 23-113. Therefore, this is a follow-on contract for the continued performance of a highly specialized service.

This service is subject to FAR Part 9 compliant qualification requirements, and as such, any contract award is limited to suppliers that have been deemed an approved source conditioned upon the Source Approval Request (SAR) process prescribed in AFMCI 23-113. Kidde Tech Inc. (Collins) is currently the only approved source. The Small

Justification and Approval (J&A) for Other Than Full and Open Competition

Business Office (SBO) has confirmed as of 20 Jul 23, that no other companies have submitted a SAR package. Consistent with regulation and guidance, no vendor is a viable source until such time as they submit a SAR package, are evaluated, and receive approval, thus becoming a qualified and approved source. Currently, Kidde Tech Inc. (Collins) is the only approved source for performance of this service.

The 422 SCMS believes that award to any other source would result in unacceptable delays in fulfilling the Air Force's requirement. [REDACTED]

[REDACTED] To date, the Government has zero serviceable assets and four back orders. Based on forecasting, it is expected that the back orders for the B-1 Alarm Control will continue to generate between now and when this requirement is expected to provide additional parts. [REDACTED]

[REDACTED]. Based on similar workloads it's estimated that it would likely take three-five years for another source to obtain the necessary capability, [REDACTED]

[REDACTED] The development of an additional source to produce this item is not feasible within the scope and time frame of this repair. The Original Equipment Manufacturer (OEM) has the potential to approve and license other suppliers for its products. However, no additional suppliers have been identified by the OEM. Additional information can be found in Section IX. In addition, reverse engineering is an opportunity to develop some of the requisite detailed production level technical data; however, completion of a reverse engineering program of this highly specialized item will take a minimum of five years through the Consolidated Sustainment Activity Group Sustaining Engineering program. This time frame includes the budget request period, purchase request processing, contract negotiation and award, period of performance qualification testing, and source qualification. A cost estimate to conduct reverse engineering for this NSN has not been generated due to lack of historical project cost information for similar equipment and scope of qualification testing, which is required to ensure no change to the item's approved technical baseline and airworthiness certification. Finally, reverse engineering is considered a high-risk endeavor for highly specialized end-items requiring unique contractor skill sets and considerable Government resources to provide items for inspection and destructive analysis.

Accordingly, Kidde Tech Inc. (Collins) is the only firm capable of providing the supplies/services described in Section III above without the Air Force experiencing unacceptable delays in fulfilling requirements.

V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under FAR 5.202 applies.

On 21 Jun 23, a Sources Sought Synopsis (SSS) was posted in SAM.gov under the reference number FA8117-23-SS-0021 with a closing date of 21 Jul 23. The SSS included the NSNs, part numbers, and quantities for this acquisition and requested information, pursuant to FAR Part 10, in support of market research to identify potential sources for the repair of the NSNs listed. The government received no responses to the SSS. In addition, any potential sources that are interested in this repair acquisition was advised to submit a SAR package IAW the instructions and procedures called out in the 848-RQR that is posted on SAM.gov.

IAW FAR 5.201, this requirement shall be synopsized and the Request for Proposal will be posted to the SAM.gov website.

VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer will ensure that the items described herein are negotiated at a fair and reasonable price to the Government. IAW FAR 15.4, the contractor will be required to submit Certified Cost or Pricing Data and/or Other Than Certified Cost or Pricing Data. A detailed cost analysis and price analysis will be performed on the proposed skill mix of labor, labor hours, types and quantities of material, other direct or indirect rates, and will be

Justification and Approval (J&A) for Other Than Full and Open Competition

negotiated by the Government based on recommendations from the Defense Contract Management Agency (DCMA) and expert technical personnel supporting the program. The Contracting Officer will request a technical evaluation from the Program Office. The Contracting Officer may seek audit assistance from the Defense Contract Audit Agency (DCAA) if necessary. The contract price will be negotiated IAW procedures in FAR Part 15 ensuring the ultimate cost to the Government is fair and reasonable.

VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

Market research, IAW FAR 10.001 and 10.002, was conducted by a multi-functional team consisting of the Item Manager, Equipment Specialist, Logistics Officer, and Engineer. This research included inquiries into Internet sites including Google, the Thomas Register, Haystack, and similar item manufacturer's websites and was conducted on 20 Oct 23. No other companies have submitted a SAR package necessary to meet the requirement described in section IV. Further, this requirement cannot be modified nor be satisfied with a commercial or modified commercial item. Market research was signed by Procuring Contracting Officer (PCO) 31 Oct 23 and by Program Manager (PM) 30 Oct 23.

VIII. Any other facts supporting the use of Other Than Full and Open Competition.

No further information.

IX. List of any sources that expressed, in writing, an interest in the acquisition.

See Section V above.
Kidde Tech Inc. (Collins) CAGE: 61423
4200 Airport DR NW
Wilson NC 27896 8630
Commercial Phone: 252-246-7073

X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisitions for the supplies or services required.

The 422 SCMS will continue to monitor the marketplace for potential source development and will continue discussions with the OEM regarding additional sources. The government will continue to synopsise requirements, rescreen the item, and attempt to acquire the data necessary to qualify additional sources with requests of Rough Order of Magnitude pricing to acquire the data usage rights.

Per DFARS PGI 206.304(a)(S-70)- As indicated by signature on the Coordination and Approval Document, the previous J&A has been reviewed and the Approval Authority determines that all stated actions to remove barriers to competition have been accomplished.

XI. Certification by the Contracting Officer.

As evidenced by my signature above, I certify that this justification is accurate and complete to the best of my knowledge and belief.

XII. Certification by the technical/requirements personnel.

As evidenced by their signatures, the technical and/or requirements personnel have certified that any supporting data

Justification and Approval (J&A) *for* Other Than Full and Open Competition

contained herein, which is their responsibility, is both accurate and complete.